

MEMORANDUM OF UNDERSTANDING
between the
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT
BOARD OF EDUCATION
and
BRECKSVILLE-BROADVIEW HEIGHTS
ORGANIZATION OF SUPPORT STAFF

The Brecksville-Broadview Heights City School District Board of Education (hereafter the “Board”) and the Brecksville-Broadview Heights Organization of Support Staff (“Association”) (collectively the “Parties”) enter into this Memorandum of Understanding (“MOU”).

WHEREAS, there is a negotiated agreement in effect between the Board and Association from July 1, 2021 through June 30, 2024 (“CBA”); and

WHEREAS, the Parties jointly seek to clarify and agree upon certain issues related to the opening of the new elementary building for the 2022-2023 school year as it relates to Association members, and in the best interest of the District as a whole.

NOW THEREFORE, effective upon execution of this MOU by all Parties, the Parties agree to the following:

A. Administrative Assistants Assigned to Elementary and Preschool

1. As of the effective date of this MOU, there are a total of four (4) 212-day administrative assistant positions assigned to the District’s three elementary buildings and one preschool building. Such positions shall not be subject to a layoff for the 2022-2023 school year and through the remainder of this contract. If any individual assigned to one of those administrative assistant positions resigns, retires, or otherwise separates from employment with the District, effective between the execution date of this MOU and the start of the 2022-2023 school year and through the remainder of this contract, such position shall not be re-posted and/or filled; however, at the district’s discretion, it may post/fill a secretary position instead to replace the former job. This provision shall remain in full force and effect through the remainder of this contract or can be extended by mutual agreement until such time that the district has only one (1) administrative assistant position and the necessary secretary positions at the elementary school, consistent with the number of administrative assistant and necessary secretary positions that are present at the middle school and high school.
2. Effective with the start of the 2022-2023 school year, the District shall transfer all such remaining 212-day administrative assistants to the new elementary building and/or a preschool building, with assignments to be made at the District’s discretion and without any vacancy/posting/application or other procedures described in the CBA. Administrative assistants’ start date for the 2022-2023 school year and through the remainder of this contract shall be in mid to late July or August as determined by the District and may include staggered start dates

where some administrative assistants would start their 212-day contract on an earlier date than other administrative assistants in that building.

3. Effective with the start of the 2022-2023 school year and thru the remainder of this contract, if any individual assigned to one of those positions resigns, retires, or otherwise separates from employment with the District, if the District chooses to maintain the position(s), the position shall be re-posted as a secretary position, unless the District otherwise chooses to maintain the position as an administrative assistant role.

B. Special Education Assistants and Educational Assistants

1. Effective with the start of the 2022-2023 school year, the parties agree that the District shall make all special education assistant positions and all educational assistant positions either a minimum of 5.25 hours or a minimum of 7 hours. Any special education assistant or education assistant position that is currently listed at less than 5.25 hours shall be increased to 5.25 hours. Any special education assistant or education assistant position that is currently listed at less than 7 hours, but more than 5.25 hours, shall be increased to 7 hours. As a result, the District may need to reduce through a layoff the number of special education assistants and/or educational assistants effective for the 2022-2023 school year.
2. For those BOSS members who are subject to a layoff, if and when such staff member is recalled into their former position, for staff who were working fewer than 5.25 hours at the time of layoff, he/she shall be recalled into a no greater than 5.25-hour position. For those staff members who are subject to a layoff, if and when such staff member is recalled into their former position, for staff were working more than 5.25 hours at the time of layoff, he/she shall be recalled into a position of no less than 7-hours.
3. If and when such staff members are recalled, in the event he/she cannot take the position due to the change in hours, he/she shall be entitled to remain on the recall list through the following school year.
4. In the event of an extreme hardship that would prevent a special education assistant or education assistant from accepting these additional hours, the member shall have the right to request a meeting with the Superintendent to discuss the extreme hardship which prevents them from working a minimum of 5.25 or 7 hours. The Superintendent shall have the sole authority and discretion to allow the member to work less than 5.25 or 7 hours. Such approval or denial shall not be unreasonably withheld and shall also not be subject to the grievance procedure.

C. Vacation Leave

1. For the 2021-2022 school year, BOSS members with vacation balances may submit an email to his/her immediate supervisor requesting payment for up to 5 vacation

days by June 8, 2022 to be paid in the June 17, 2022 payroll subject to all applicable taxes and withholdings.

2. For the 2021-2022 school year, BOSS members may take more than 15 vacation days during student days as long as employee has submitted in advance and has received approval from his/her immediate supervisor.
3. For the 2022-2023 school year, BOSS members may carryover up to 20 vacation days from the 2021-2022 school year.
4. For the 2022-2023 school year, BOSS members may submit an email to his/her immediate supervisor requesting payment for up to 5 vacation days by December 14, 2022 to be paid in the December 23, 2022 payroll subject to all applicable taxes and withholdings.
5. For the 2022-2023 school year, BOSS members may take more than 15 vacation days during student days as long as employee has submitted in advance and has received approval from his/her immediate supervisor.
6. Vacation rollover limit will return to contract language at July 1, 2023. Days in excess of 10 at that time will not carryover.

D. Bus Driver and Bus Aide Benefits

1. For bus drivers and bus aides working thirty (30) or more hours while employed prior to December 31, 2021, and who remain employed with the District on a continuous basis thereafter, he/she shall be entitled to maintain their level of benefits (single or family, medical and prescription drug) starting with the January 1, 2022 calendar year, and through the remainder of this contract, even if such bus driver or Bus Aide works fewer than thirty (30) hours. He/she shall remain responsible for paying the premiums that apply to employees working thirty (30) hours or more. Bus drivers and Bus Aides that work below 20 hours or less per week would not be entitled to any medical, prescription or dental benefits.

E. If any provisions of the CBA conflict with this MOU, this MOU shall prevail.

F. The Parties agree that this Memorandum is not otherwise precedent setting and that this document will not be introduced in any subsequent action as between them.

**BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT BOARD OF
EDUCATION**

By: Spelle Magyar

Title: Superintendent

Date: 4-6-22

**BRECKSVILLE-BROADVIEW HEIGHTS
ORGANIZATION OF SUPPORT STAFF**

By: Frank Bova

Title: _____

Date: 4/6/22